

**IN THE U.S. DISTRICT COURT FOR THE
NORTHERN DISTRICT OF ILLINOIS
EASTERN DIVISION**

MARGARET MONAHAN,
a Kansas resident,

Plaintiff,

VS.

No.

CHICAGO CARRIAGE CAB CORP.,
an Illinois corporation;
CHICAGO ELITE CAB CORP.,
an Illinois corporation;
KWAME NSIAH-ABABIO,
A/K/A KWAME ABABIO and
KWAME NSIAH, an Illinois resident,
individually and as
agent, employee and/ or servant of
CHICAGO CARRIAGE CAB CORP. and
CHICAGO ELITE CAB CORP.,

Defendants.

FILED: JUNE 13, 2008

08CV3438

JUDGE MORAN

MAGISTRATE JUDGE NOLAN

NF

COMPLAINT AT LAW

JURISDICTIONAL STATEMENT

The United States District Court for the Northern District of Illinois, Eastern Division has jurisdiction under 28 U.S.C. § 1332. The parties are citizens of different states and the matter in controversy exceeds the sum or value of \$75,000.00, exclusive of interest and costs.

COUNT I

CHICAGO CARRIAGE CAB CORP., an Illinois corporation

NOW COMES the Plaintiff, MARGARET MONAHAN, by and through her attorneys,
LEVIN, RIBACK LAW GROUP, P.C., and complaining of the defendant, CHICAGO
CARRIAGE CAB CORP., an Illinois corporation, alleges as follows:

1. On January 26, 2008 and for a long period of time prior thereto, Mies Van Der Rohe Way was a north and southbound street that intersected with Walton Place, an east and westbound street, in the City of Chicago, County of Cook, and State of Illinois.

2. On January 26, 2008, the Plaintiff, MARGARET MONAHAN, a resident of the State of Kansas, was a pedestrian crossing the street in a marked crosswalk running parallel to Mies Van Der Rohe Way on the west side of its intersection with Walton Place, and at all times herein mentioned was exercising all due care and caution for her own safety.

3. On the aforesaid day and date, co-defendant KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, an Illinois resident, was the agent, employee and/or servant of defendant CHICAGO CARRIAGE CAB CORP., an Illinois Corporation, and was at all times mentioned herein acting within the scope of the agency.

4. On the day and date aforesaid the defendant, CHICAGO CARRIAGE CAB CORP., by and through its agent, employee and/or servant KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, was operating a taxi-cab in a northbound direction on Mies Van Der Rohe Way, then started to make a left turn onto westbound Walton Place through the marked crosswalk where the Plaintiff, MARGARET MONAHAN was lawfully walking.

5. The defendant, CHICAGO CARRIAGE CAB CORP., by and through its agent, employee and/or servant KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, operated the taxi-cab in such a careless and negligent manner that as a direct and proximate result thereof, the automobile struck the Plaintiff, MARGARET MONAHAN, causing her to suffer serious and permanent personal injuries.

6. At all times mentioned herein, the defendant owed the Plaintiff, MARGARET MONAHAN, a duty to operate the taxi-cab with reasonable care.

7. The defendant was guilty of one or more of the following acts of negligence which was a proximate cause of the Plaintiff's injuries:

- (a) Carelessly and negligently operated, managed, and controlled said motor vehicle so that as a direct and proximate result thereof the plaintiff was injured;
- (b) Carelessly and negligently failed to stop the motor vehicle to avoid striking a pedestrian in a marked crosswalk in violation of 625 ILCS 5/11-1002;
- (c) Carelessly and negligently operated the motor vehicle without keeping a proper and sufficient lookout for pedestrians crossing the street;
- (d) Carelessly and negligently failed to yield the right-of-way to a pedestrian in a marked crosswalk in violation of 625 ILCS 5/11-1002;
- (e) Carelessly and negligently failed to maintain proper control over the motor vehicle at all times;
- (f) Carelessly and negligently failed to give a proper warning of the approach of said motor vehicle by honking a horn in violation of 625 ILCS 5/11-1002;
- (g) Drove the vehicle at a rate of speed that was faster than reasonable given the circumstances in violation of 625 ILCS 5/11-601.

8. As a direct and proximate result of the negligence of the defendant, the taxi-cab struck the Plaintiff, MARGARET MONAHAN, causing her to suffer severe and permanent personal and pecuniary injuries. As a result of these injuries Ms. Monahan has been unable to work. She has incurred serious pain and suffering and disabilities as a result of these injuries.

WHEREFORE, the Plaintiff, MARGARET MONAHAN, demands judgment against the defendant, CHICAGO CARRIAGE CAB CORP., an Illinois corporation, in a sum in excess of seventy-five thousand dollars (\$75,000.00) and costs in bringing this action.

COUNT II
CHICAGO ELITE CAB CORP., an Illinois corporation

NOW COMES the Plaintiff, MARGARET MONAHAN, by and through her attorneys, LEVIN, RIBACK LAW GROUP, P.C., and complaining of the defendant, CHICAGO ELITE CAB CORP., an Illinois corporation, alleges as follows:

1. On January 26, 2008 and for a long period of time prior thereto, Mies Van Der Rohe Way was a north and southbound street that intersected with Walton Place, an east and westbound street, in the City of Chicago, County of Cook, and State of Illinois.

2. On January 26, 2008, the Plaintiff, MARGARET MONAHAN, a resident of the state of Kansas, was a pedestrian crossing the street in a marked crosswalk running parallel to Mies Van Der Rohe Way on the west side of its intersection with Walton Place, and at all times herein mentioned was exercising all due care and caution for her own safety.

3. On the aforesaid day and date, co-defendant KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, an Illinois resident was the agent, employee and/or servant of defendant CHICAGO ELITE CAB CORP., an Illinois Corporation, and was at all times mentioned herein acting within the scope of the agency.

4. On the day and date aforesaid the defendant, CHICAGO ELITE CAB CORP., by and through its agent, employee and/or servant KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, was operating a taxi-cab in a northbound direction on Mies Van Der Rohe Way, then started to make a left turn onto westbound Walton Place through the marked crosswalk where the Plaintiff, MARGARET MONAHAN was lawfully walking.

5. The defendant, CHICAGO ELITE CAB CORP., by and through its agent, employee and/or servant KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, operated the taxi-cab in such a careless and negligent manner that as a direct and proximate result thereof, the automobile struck the Plaintiff, MARGARET MONAHAN, causing her to suffer serious and permanent personal injuries.

6. At all times mentioned herein, the defendant owed the Plaintiff, MARGARET MONAHAN, a duty to operate the taxi-cab with reasonable care.

7. The defendant was guilty of one or more of the following acts of negligence which was a proximate cause of the Plaintiff's injuries:

- (a) Carelessly and negligently operated, managed, and controlled said motor vehicle so that as a direct and proximate result thereof the plaintiff was injured;
- (b) Carelessly and negligently failed to stop the motor vehicle to avoid striking a pedestrian in a marked crosswalk in violation of 625 ILCS 5/11-1002;
- (c) Carelessly and negligently operated the motor vehicle without keeping a proper and sufficient lookout for pedestrians crossing the street;
- (d) Carelessly and negligently failed to yield the right-of-way to a pedestrian in a marked crosswalk in violation of 625 ILCS 5/11-1002;
- (e) Carelessly and negligently failed to maintain proper control over the motor vehicle at all times;
- (f) Carelessly and negligently failed to give a proper warning of the approach of said motor vehicle by honking a horn in violation of 625 ILCS 5/11-1002;
- (g) Drove the vehicle at a rate of speed that was faster than reasonable given the circumstances in violation of 625 ILCS 5/11-601.

8. As a direct and proximate result of the negligence of the defendant, the taxi-cab struck the Plaintiff, MARGARET MONAHAN, causing her to suffer severe and permanent personal and pecuniary injuries. As a result of these injuries Ms. Monahan has

been unable to work. She has incurred serious pain and suffering and disabilities as a result of these injuries.

WHEREFORE, the Plaintiff, MARGARET MONAHAN, demands judgment against the defendant, CHICAGO ELITE CAB CORP., an Illinois corporation, in a sum in excess of seventy-five thousand dollars (\$75,000.00) and costs in bringing this action.

COUNT III

KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, an Illinois resident, individually and as employee, agent and/or servant of CHICAGO CARRIAGE CAB CORP., an Illinois corporation and CHICAGO ELITE CAB CORP., an Illinois corporation

NOW COMES the Plaintiff, MARGARET MONAHAN, by and through her attorneys, LEVIN, RIBACK LAW GROUP, P.C., and complaining of the defendant, KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, an Illinois resident, individually and as employee, agent and/or servant of CHICAGO CARRIAGE CAB CORP., an Illinois corporation; and CHICAGO ELITE CAB CORP., an Illinois corporation, alleges as follows:

1. On January 26, 2008 and for a long period of time prior thereto, Mies Van Der Rohe Way was a north and southbound street that intersected with Walton Place, an east and westbound street, in the City of Chicago, County of Cook, and State of Illinois.

2. On January 26, 2008, the Plaintiff, MARGARET MONAHAN, a resident of the state of Kansas, was a pedestrian crossing the street in a marked crosswalk running parallel to Mies Van Der Rohe Way on the west side of its intersection with Walton Place, and at all times herein mentioned was exercising all due care and caution for her own safety.

3. On the aforesaid day and date, defendant ,KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, an Illinois resident, was the agent, employee and/or servant of co-defendants CHICAGO CARRIAGE CAB CORP., and CHICAGO ELITE CAB CORP., both Illinois Corporations, and was at all times mentioned herein acting within the scope of the agency.

4. On the day and date aforesaid the defendant, KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, individually and as agent, employee and/or servant of co-defendants CHICAGO CARRIAGE CAB CORP., and CHICAGO ELITE CAB CORP., was operating a taxi-cab in a northbound direction on Mies Van Der Rohe Way, and started to make a left turn onto westbound Walton Place through the marked crosswalk where the Plaintiff, MARGARET MONAHAN was lawfully walking.

5. The defendant, KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, individually and as agent, employee and/or servant of co-defendants CHICAGO CARRIAGE CAB CORP., and CHICAGO ELITE CAB CORP., operated the taxi-cab in such a careless and negligent manner that as a direct and proximate result thereof, the automobile struck the Plaintiff, MARGARET MONAHAN, causing her to suffer serious and permanent personal injuries.

6. At all times mentioned herein, the defendant owed the Plaintiff, MARGARET MONAHAN, a duty to operate the taxi-cab with reasonable care.

7. The defendant was guilty of one or more of the following acts of negligence which was a proximate cause of the Plaintiff's injuries:

- (a) Carelessly and negligently operated, managed, and controlled said motor vehicle so that as a direct and proximate result thereof the plaintiff was injured;

- (b) Carelessly and negligently failed to stop the motor vehicle to avoid striking a pedestrian in a marked crosswalk in violation of 625 ILCS 5/11-1002;
- (c) Carelessly and negligently operated the motor vehicle without keeping a proper and sufficient lookout for pedestrians crossing the street;
- (d) Carelessly and negligently failed to yield the right-of-way to a pedestrian in a marked crosswalk in violation of 625 ILCS 5/11-1002;
- (e) Carelessly and negligently failed to maintain proper control over the motor vehicle at all times;
- (f) Carelessly and negligently failed to give a proper warning of the approach of said motor vehicle by honking a horn in violation of 625 ILCS 5/11-1002;
- (g) Drove the vehicle at a rate of speed that was faster than reasonable given the circumstances in violation of 625 ILCS 5/11-601.

8. As a direct and proximate result of the negligence of the defendant, the taxi-cab struck the Plaintiff, MARGARET MONAHAN, causing her to suffer severe and permanent personal and pecuniary injuries.

WHEREFORE, the Plaintiff, MARGARET MONAHAN, demands judgment against the defendant, KWAME NSIAH-ABABIO, A/K/A KWAME ABABIO and KWAME NSIAH, an Illinois resident, individually and as employee, agent and/or servant of co-defendants CHICAGO CARRIAGE CAB CORP. and CHICAGO ELITE CAB CORP., in a sum in excess of seventy-five thousand dollars (\$75,000.00) and costs in bringing this action.

Respectfully submitted,

LEVIN, RIBACK LAW GROUP, P.C.

By: *S/Richard I. Levin*
Richard I. Levin
Attorney for Plaintiff

Richard I. Levin
LEVIN, RIBACK LAW GROUP, P.C.
200 North LaSalle Street
Chicago, Illinois 60601
(312) 782-6717

SUPREME COURT RULE 222 AFFIDAVIT

Richard I. Levin, attorney for plaintiff, duly sworn under oath, states as follows:

Based upon information and belief as of the date of the signing this Complaint, the total amount in controversy exceeds the value or sum of \$75,000.00, exclusive of costs and interest.

S/Richard I. Levin
Richard I. Levin
Attorney for Plaintiff
Levin, Riback Law Group, P.C.
200 North LaSalle Street
Suite 2300
Chicago, Illinois 60601

Dated: 6/13/08